

23SMCV01463 23SMCV01463

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-09-18

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This is a motion to consolidate two related cases. In both cases, plaintiff seeks an easement over property owned by various defendants, although the defendants do not overlap. Plaintiff contends, as best the court understands it, that an easement is needed for practical access to plaintiff's property. At the last hearing, the court requested that the parties submit a map. Defendant Silver submitted the map. The court understands that the parties were unable to agree on a map but it appears that the filing was an attempt to provide both views in a non-argumentative fashion, which the court appreciates. All defendants share the same position. According to defendants, the "blue line" on the map is a route sought by plaintiffs in both complaints. Defendants further state that in both complaints, the route is defined identically. There is also an "orange line" that is the path defendants state is sought in the Ghertner case. Defendants also attached plaintiff's map. It includes an "orange line" that represents the easement plaintiff seeks in the Ghertner case. The difference is that the "blue line" shown on defendants' map and the "orange line" on plaintiff's map is that the route veers a bit for what defendants' claim is a short period at the northern part of the Clemens property. Plaintiffs' map also has a "green line" but defendants contend that they do not know what it is because it follows the "blue line" but then stops without reaching any public road. According to the defense, plaintiffs' counsel states that the "green line" is from a 1970 easement grant that is not mentioned in the Stang action or mentioned in discovery to date.

The court has reviewed the maps. At least so far as the court can tell, the roads are essentially the same for all practical purposes that would relate to

the adjudication of the cases. They would go south through plaintiffs' property to the Clemens property and roughly south from there through the Silver-Nelson property, dipping a bit into the Johnson property, then back to the Silver-Nelson property, then through the McCoy property, and then to the "Stang/Ghertner" property to Greenleaf Canyon Road, which is public.

Because the roads look at least very similar, the court believes that defendants have the better of it and the matters should be consolidated. The court is therefore inclined to GRANT the motion. The court will discuss what, if any, effect this will have on the trial date.